

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----x
ANTHONY McKINLEY JOHNSON, JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, and NEW YORK CITY P.O.
JAMES SHOULDIS (6th precinct), (tax ID # 16502),Defendants
-----x

Index No. 151242/2023

**AMENDED
COMPLAINT**

Plaintiff, complaining of the defendant herein by his attorneys, Antin, Ehrlich & Epstein, LLP, respectfully sets forth and alleges, upon information and belief, as follows:

1. Defendant City is a municipality within the State of New York, which includes New York County. Defendant City maintains a police department, the New York City Police Department (“NYPD”), which is an agency of the municipality.
2. Upon information and belief, Defendant Shouldis was at all times relevant to this action an officer with the NYPD assigned to the 6th Precinct. All actions by Shouldis complained of herein were taken in the course and scope of his employment and under color of law. Shouldis is being sued in both his individual and official capacities.
3. Plaintiff Anthony McKinley Johnson, Jr. (hereinafter referred to as “Johnson”), was a resident of New York County, New York at the time of this occurrence.
4. On or about February 8, 2020 at approximately 7:00 p.m. Plaintiff was lawfully within his apartment, located at 240 Waverly Place, apartment number 24, New York, New York. At the aforesaid time and place Plaintiff was entertaining a few friends/acquaintances.
5. At the aforesaid time and place, defendant “Shouldis” and others forced their way into

Plaintiff's apartment without a warrant, falsely arrested him and held him against his will for approximately 24 hours and falsely charged him with the crime of Assault in the Third Degree [PL 120.00(1)].

6. In full view of Plaintiff's guests, defendant "Shouldis" became verbally abusive and accused Plaintiff of assaulting an individual that at some earlier point was a guest in Plaintiff's apartment.
7. Plaintiff was arrested, placed in handcuffs and transported to the 6th precinct where he was informed by defendant "Shouldis", the arresting officer, that he was being charged with Assault in the Third Degree. Plaintiff was unaware of the alleged incident complained of.
8. Several hours later, Plaintiff was transported to Central Booking where he remained for the remainder of the 24 hours he was held.
9. On February 9, 2020, after a total of 24 hours, all charges against Plaintiff were dismissed when it became evident that the allegations were fabricated by Natalie Salazar against Plaintiff.
10. As a direct and proximate consequence of these acts, Plaintiff was compelled to leave his then-position and re-located to another State resulting in grave economic loss, including but not limited to relocation to Florida, significant defense costs, and severe and continuing emotional distress and mental anguish.

**AS AND FOR A FIRST CLAIM
(§1983 – False Arrest)**

11. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 10 of the Complaint as if incorporated and reiterated herein.
12. By arresting plaintiff without legal authority on February 8, 2020 based solely on the

false allegations of Natalie Salazar violated Plaintiff's rights under, *inter alia*, the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

13. The actions of defendants, their agents, servants, officers and/or employees, specifically, defendant "Shouldis", caused the plaintiff to be deprived of his fundamental rights under the Constitution and laws of the United States including but not limited to, the right not to be deprived of liberty or property or be arrested, detained or imprisoned without probable cause under the Fourth, Fifth and Fourteenth Amendment of the Constitution of the United States and the right not to be arrested, prosecuted, indicted or detained upon false testimony and/or evidence in violation of the Due Process Clauses of the Fifth and Fourteenth Amendments.
14. Throughout the events set forth above, defendants, their officers, agents, servants and/or employees, acted with actual malice toward the plaintiff, with utter and deliberate indifference to and disregard for the plaintiff's rights under the Constitution and laws of the United States and the State of New York, and without probable or reasonable cause to believe that the plaintiff had engaged in or was about to engage in any criminal or wrongful activity.
15. The foregoing violations of the plaintiff's rights constituted Constitutional torts and were affected by actions taken under color of law, and within the scope of authority.
16. By reason of the foregoing, defendants are liable to plaintiff pursuant to 42 U.S.C. § 1983.
17. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CLAIM
(\$1983 - Illegal Search and Seizure)**

18. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 17 of the Complaint as if incorporated and reiterated herein.
19. The actions of defendants, their agents, servants, officers and/or employees, specifically, defendant “Shouldis”, caused the plaintiff to be deprived of his fundamental rights under the Constitution and laws of the United States including but not limited to, the guarantee against unreasonable searches and seizures secured by, *inter alia*, the Fourth and Fourteenth Amendments; the right not to be deprived of liberty or property or be arrested, detained or imprisoned without probable cause under the Fourth, Fifth and Fourteenth Amendment of the Constitution of the United States and the right not to be arrested, prosecuted, indicted or detained upon false testimony and/or evidence in violation of the Due Process Clauses of the Fifth and Fourteenth Amendments.
20. Throughout the events set forth above, defendants, their officers, agents, servants and/or employees, acted with actual malice toward the plaintiff, with utter and deliberate indifference to and disregard for the plaintiff’s rights under the Constitution and laws of the United States and the State of New York, and without probable or reasonable cause to believe that the plaintiff had engaged in or was about to engage in any criminal or wrongful activity.
21. The foregoing violations of the plaintiff’s rights constituted Constitutional torts and were affected by actions taken under color of law, and within the scope of authority.
22. By reason of the foregoing, defendants are liable to plaintiff pursuant to 42 U.S.C. § 1983.
23. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the

jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CLAIM
(Malicious Prosecution - State Law)**

24. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 23 of the Complaint as if incorporated and reiterated herein.
25. Plaintiff was unlawfully detained and arrested on February 8, 2020 without probable cause by defendant “Shouldis” based upon the false allegations of Natalie Salazar.
26. By commencing a proceeding in the absence of probable cause and with actual malice, defendant, “Shouldis” intentionally engaged in a malicious prosecution of plaintiff in violation of, *inter alia*, Plaintiff’s Fourth and Fourteenth Amendment rights to be free from prosecution without legal justification.
27. By reason thereof, defendant “Shouldis” violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional distress, mental anguish, economic damages and the loss of her constitutional rights.
28. By reason thereof, and because defendants acted within the scope of their duties as a member of the NYPD, defendant City is also liable under this claim based on a theory of *respondeat superior*.
29. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CLAIM
(Malicious Prosecution - §1983)**

30. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 29 of the Complaint as if incorporated and reiterated herein.
31. Plaintiff was unlawfully detained and arrested on February 8, 2020 by defendant

“Shouldis”, based upon the false allegation of Natalie Salazar.

32. By commencing a proceeding in the absence of probable cause and with actual malice, defendant, “Shouldis” intentionally engaged in a malicious prosecution of Plaintiff in violation of, *inter alia*, Plaintiff’s Fourth and Fourteenth Amendment rights to be free from prosecution without legal justification.
33. By reason thereof, defendant “Shouldis” violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional distress, mental anguish, economic damages and the loss of her constitutional rights.
34. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CLAIM
(Intentional Infliction of Emotional Distress)**

35. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 34 of the Complaint as if incorporated and reiterated herein.
36. Plaintiff was unlawfully detained and arrested on February 8, 2020 by defendant “Shouldis”, which subjected Plaintiff to intentional infliction of emotional distress by defendant “Shouldis” in performance of his police duties.
37. By reason thereof, defendant “Shouldis” caused Plaintiff to suffer emotional distress, mental anguish, economic damages and the loss of her constitutional rights.
38. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CLAIM
(Negligent Infliction of Emotional Distress)**

39. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 38 of

the Complaint as if incorporated and reiterated herein.

40. Plaintiff was unlawfully detained and arrested on February 8, 2020 by defendant “Shouldis”, which subjected Plaintiff to negligent infliction of emotional distress by defendant “Shouldis” in performance of his police duties.
41. By reason thereof, defendant “Shouldis” caused Plaintiff to suffer emotional distress, mental anguish, economic damages and the loss of her constitutional rights.
42. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CLAIM AGAINST THE CITY OF NEW YORK
(Negligent Hiring, Retention, Supervision and Training)**

43. Plaintiff, repeats and re-alleges each and every allegation of paragraphs 1 through 42 of the Complaint as if incorporated and reiterated herein.
44. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of defendant “Shouldis”, who violated Plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution when he forced his way into Plaintiff’s apartment without a warrant and held him against his will for approximately 24 hours and then falsely charged him with the crime of Assault in the Third Degree [PL 120.00(1)].
45. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant “Shouldis” and continued to employ him and allowed him to be in contact with the public at large.
46. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CLAIM
(Civil Rights Violation Under 42 U.S.C. 1981, 1983, and 1985)

47. Plaintiff repeats and realleges each and every allegation of paragraphs 1 through 46 of the Complaint as if incorporated and reiterated herein.
48. That at all times hereinafter mentioned, defendant “Shouldis” engaged in the actions and conduct alleged herein in his official capacity as a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.
49. That such actions served to deprive the Plaintiff of the rights and privileges of the United States Constitution, *inter alia*, 42 U.S.C. 1981, 1983 and 1985. In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty and to be free from unwarranted use of physical force.
50. That the defendant, THE CITY OF NEW YORK, had as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, specifically, defendant “Shouldis” regarding the protection of the constitutional rights of citizens.
51. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officers' unlawful conduct described above, and was the approximate cause of the violations of the Plaintiff's Constitutional rights on February 8, 2020.
52. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CLAIM
(Civil Right Violation under Article 1, Section 12 of the New York State Constitution)

53. Plaintiff repeats and realleges each and every allegation of paragraphs 1 through 48 of the Complaint as if incorporated and reiterated herein.
54. That such actions described above by defendants served to deprive the Plaintiff of the rights and privileges of the Constitution of the State of New York, Article 1, Section 12. In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from unwarranted use of physical force.
55. That the defendant, THE CITY OF NEW YORK, had as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, specifically, defendant "Shouldis", regarding the protection of the constitutional rights of citizens.
56. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officers' unlawful conduct described above, and was the approximate cause of the violations of the Plaintiff's civil rights on February 8, 2020.
57. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CLAIM
(Monell Claim)

58. Plaintiff repeats and realleges each and every allegation of paragraphs 1 through 53 of the Complaint as if incorporated and reiterated herein.
59. By commanding plaintiff's arrest without legal justification or even an inquiry into what had occurred prior to issuing that unlawful order, Defendant, THE CITY OF NEW

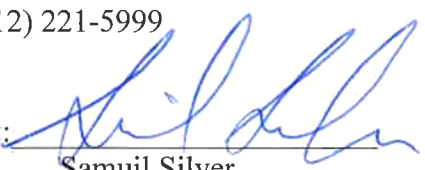
YORK, and its responding Officer, specifically, defendant “Shouldis”, violated plaintiff’s constitutional rights.

60. Defendant, THE CITY OF NEW YORK, and the NYPD had a duty to competently and sufficiently train the individual defendant “Shouldis” in the protection of the constitutional rights of Plaintiff under the Fourteenth Amendment of the United States Constitution and Article 1, §§ 8, 11 and 12 of the Constitution of the State of New York.
61. In addition, Defendant, THE CITY OF NEW YORK, and the NYPD had the duty to competently and sufficiently train and supervise the individual defendant “Shouldis” to conform his conduct to a standard, established by law, for the protection of citizens, such as Plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens, such as the Plaintiff herein.
62. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff, Anthony McKinley Johnson Jr., demands judgment against the defendants in the sum above mentioned, plus attorneys’ fees, all together with the costs and disbursements of this action.

Dated: New York, New York
February 8, 2023

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By: 

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